

**Draft for exact-file review**

Proposed language. Accepted source facts retain their original status. No execution, filing, payment or clearance is established by this edition.

Red Wash chronology reconciliation and proposed correction instrument

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Approval: UNESTABLISHED

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This is a proposed synthetic instrument for exact-content review. It has not been signed, adopted, delivered to a counterparty or made effective. Existing accepted facts cited below remain controlling; new clauses are proposed terms, not retrospective evidence.

1. Proposed adoption and limited effect

The proposed approving authority would adopt this instrument solely to settle the representation of conflicting pre-close dates. Pale Sun Inc., Red Wash Mining, LLC and their record custodians would retain both original source series. Northstar Minerals, Inc. is the historical seller, not an author or signatory to this draft. No signature, seller acknowledgment or new historical correspondence is inferred.

The immediate proposed correction is to the *presentation of uncertainty*: until an accepted decision selects an event identity and date, a current reader view must show both source assertions with their different meanings. It must not silently choose the later publication, overwrite the other date, or combine the two into a fictitious sequence of two separate walk-aways. This is a usable correction instrument even before a day-level historical choice is made: it specifies the affected statements, the replacement reader language, the preserved accounting boundary and the evidence needed for a narrower successor.

The accepted common transaction remains the acquisition of 100% of Red Wash Mining, LLC by Pale Sun Inc. from Northstar Minerals, Inc., closing July 18, 2025. The operator remains Red Wash Mining, LLC. This instrument creates no different seller, buyer, financing, purchase price or operating relationship.

2. Schedule A — competing assertions

Event key	Industrial transaction file	Mine instruments / native chronology	Proposed current reader wording
RW-CHR-01: seller re-trade	March 14, 2025: seller re-trade exceeds the supported case	April 11, 2025: Seller Re-Trade Memorandum	Sources place a seller re-trade in March and a re-trade memorandum in April; whether these describe separate steps is unresolved
RW-CHR-02: walk-away	April 4, 2025: Sable Harbor walks away	May 5, 2025: Sable Harbor Walk-Away Notice	A walk-away preceded renewed negotiations; the internal decision and notice dates have not been reconciled
RW-CHR-03: resumption	May 16, 2025: Norwood returns with willingness to change risk allocation	May 29, 2025: Northstar returns (native event RW-TXN-011); June 6, 2025: revised term sheet (RW-TXN-012 and instrument collection)	The May 16 / May 29 return dates conflict; the June 6 term sheet may be a different stage and does not resolve that conflict
RW-CHR-04: final authority	July 11, 2025: buyer approves final consideration and stabilization	July 2, 2025: purchase agreement signed	The reconstructed signature precedes the industrial approval entry; authority scope and any prior authorization require reconciliation
RW-CHR-05: closing	July 18, 2025: membership interests transfer	July 18, 2025: purchase closes	July 18, 2025 remains the accepted closing date

The mine collection expressly treats day-level instrument dates other than the selected close as synthetic scenario precision unless separately locked. The industrial file describes its paper-trail dates as derived implementation. Their labels differ, but that difference alone is not enough to conclude that one dated event is the legal notice for another. In particular, an approval record after a reconstructed signature is not evidence that an unauthorized transaction actually occurred.

3. Replacement language for current derivatives

On adoption, a current chronology summary containing a disputed exact date would add the following qualification at the event rather than burying it in a release footer:

The accepted sequence is diligence, seller re-trade, walk-away, return to negotiations, revised risk allocation and closing on July 18, 2025. The industrial transaction file and mine instrument collection give different pre-close dates. The paired assertions in SH-LEGAL-DRAFT-RW-CHRONOLOGY Schedule A remain unresolved; no second event or backdated authority is inferred.

This proposed wording does not replace narrative accounts describing the substance of diligence or the operating consequences of uncertainty. The existing underlying Markdown, native chronology records and released packages remain unchanged. A successor publication may carry the clarification, its own revision and a link to this instrument only after acceptance. A mere draft link does not make the proposed wording controlling.

4. Event identity examination

For each disputed pair the transaction owner would prepare an event identity sheet containing the source path, section, original stated date, asserted actor, action, document type, knowledge-availability date and consequence. The comparison must identify whether it concerns an internal decision, external notice, negotiating conversation, agreement date or final authorization. The reviewer must preserve different event identities even when their descriptions are similar.

Evidence sufficient to propose separate events would include a source-supported distinction in actor, communication, decision scope or consequence. The attractive explanation that April 4 was an internal decision and May 5 was the later notice remains only a candidate hypothesis until a record establishes it. Likewise, the May 16 industrial return must be compared with the native May 29 return, not only with the June 6 term sheet. Native events RW-TXN-009 and RW-TXN-010 separately retain April 11 re-trade and May 5 walk-away; RW-TXN-011 retains May 29 seller return. These event IDs and their scenario-detail labels must survive a correction. A new authored fictional record may propose such a distinction, but its later creation and proposed status must remain visible to the owner deciding whether to adopt it.

The examination must not manufacture email headers, countersignatures, delivery receipts, Board minutes or witness statements. Named people already in the transaction may be identified by their accepted roles; the examiner may not ascribe new recollections to them. Martin Shaw's transaction leadership, Mari Varela's operating role and Henry Norwood's seller role remain separate.

5. Decision instrument

The approving record would select one of three dispositions for each event key: retain paired uncertainty; adopt a documented distinction between events; or supersede one date within an expressly named source scope. The selected disposition must state the accepted replacement wording and its evidence basis. A global instruction to make all dates consistent is insufficient.

The decision record must identify the approving repository record, decision date and affected successor sources. It must separately state historical effective date, if any, and publication date. No field is preselected in this draft. An accepted choice on RW-CHR-01 does not automatically decide RW-CHR-02 or RW-CHR-04. Rejection of a proposed distinction leaves the paired original assertions intact and does not delete the rejected analysis from provenance.

6. Accounting preservation schedule

Measure	Preserved accepted case amount USD	Treatment
Operating assets	42,000,000	Acquisition bridge input
Acquired current assets	4,500,000	Acquisition bridge input
Accounting ARO assumed	16,000,000	Liability, not current-cost closure estimate
Other assumed liabilities	2,500,000	Liability
Cash consideration	28,000,000	No change proposed
Environmental/title escrow	3,000,000	Within consideration
Holdback	500,000	Within consideration and separate from escrow
Transaction debt / goodwill	0 / 0	No financing or balancing plug

No chronology correction authorizes changes to these amounts, a released escrow balance, tax treatment, annual sales, or the separate \$11 million H2 2025 stabilization program. If an eventual date decision affects a modeled accrual or participant knowledge state, Finance must calculate and disclose that consequence in a separate successor before adopting it. Historical release source locks remain intact.

7. Delivery and review record

The proposed custodian would attach a comparison of the old and new reader statements, preserve the original source hashes and list every derivative actually rebuilt. An index entry must identify this instrument as pending until accepted. After adoption, validation should reject a current derivative that asserts one disputed exact date without its accepted disposition. Validation cannot itself choose that disposition.

The review record presently states: **no event-date resolution adopted; no historical source changed; no signatures supplied; July 18 closing and selected consideration preserved.** The next decision is confined to event identity and date precision. It does not reopen the acquisition economics, resource basis or institutional authority architecture.

Source documents

- [industrial/transaction/01_RW_TRANSACTION_FILE.md](#)
- [red_wash/agreements/TRANSACTION_AND_COMMERCIAL_INSTRUMENTS.md](#)
- [docs/canon/RED_WASH_TRANSACTION_OPERATING_RECORD_2026-09-05_R2.md](#)
- [docs/canon/INDUSTRIAL_CLOSEOUT_2026-09-05.md](#)
- Native Red Wash operating and chronology data